

JUDGMENT SHEET

**IN THE LAHORE HIGH COURT LAHORE.
JUDICIAL DEPARTMENT.**

W.P. No.13985/2014.

Farzana Roohi

Vs.

Divisional Superintendent, Pakistan Railways etc.

JUDGMENT

Date of Hearing	10.07.2014.
Petitioner by:	Mr. Mushtaq Ahmad Mohal, Advocate.
Respondents No.1 to 4 by	Mr. Salman Kazmi, Advocate.
Respondent No. 5 by	Mian Irfan Akram, Deputy Attorney General.

ABID AZIZ SHEIKH, J. Through this constitutional petition, the petitioner has assailed the order dated 23.04.2014 passed by respondents and also seeking directions to the respondents to pay compensation alongwith interest/profit against accidental death of petitioner’s deceased father during the performance of his official duties.

2. Brief facts are that father of the petitioner namely Muhammad Hanif was a Train Driver in Railway Department. The petitioner’s father died while performing his official duties as Train Driver at Attari, India on 25.12.2006. The dead body of late Muhammad Hanif was escorted by Indian Police to Amrtisar

Hospital India where the Doctors declared him as dead and also conducted his post mortem examination on 26.12.2006. According to the said post mortem report injuries of multiple reddish brown abrasions were found on the side of face of the deceased and the cause of death was “*B/L Broncho Pneumonia leading to septicemic shock which is sufficient to cause death in ordinary course of nature*”. The legal heirs of deceased Muhammad Hanif filed their claim for compensation with the Railway Department. The said claim was not decided, therefore, writ petition No.2083/2013 was filed, which was disposed of on 01.02.2013, with direction to respondents to decide petitioner’s representation within 15 days. The Railway Department rejected the representation of the petitioner on 25.4.2013 on the ground that the cause of death was “heart attack” which does not fall within the ambit of Accidental Death, hence no compensation can be awarded to legal heirs. The petitioner being aggrieved filed another writ petition No.19836/2013 which was disposed of with consent of the parties on 21.02.2014 with direction to respondent No.1 to decide the matter afresh after recording contentions of the petitioner on legal as well as factual plane and also pass a speaking order within 30 days. The respondent No.1 instead of deciding the matter within 30 days, informed the petitioner vide impugned letter dated 23.04.2014 to contact the competent Court for exhumation of body of her deceased father and constitution of Medical Board for the purpose of ascertaining cause of death of late Muhammad Hanif. Petitioner being aggrieved of aforesaid letter and failure on part of respondents to pay due compensation

to the petitioner and other legal heirs of late Muhammad Hanif has filed this constitutional petition.

3. Learned counsel for the petitioner argued that petitioner's father was a Train Driver with Railway Department who died during performance of his official duties at Attari, India on 25.12.2006, therefore, the petitioner is entitled for compensation. Maintains that according to post mortem conducted on 26.12.2006 by Doctors of Amritsar Hospital India, the petitioner's late father suffered multiple injuries which resulted to Broncho Pneumonia leading to septicemia shock sufficient to cause death; that in presence of the post mortem report dated 26.12.2006, it is obvious that petitioner's father's death was result of accident which entitles the legal heirs for grant of compensation under the law; that there was no occasion for referring the matter for exhumation of body of petitioner deceased father to determine cause of death after more than eight years of his death. Further submits that claim of the petitioner was declined by the respondents on the sole ground that death was result of heart attack and not due to accident. Argued that without prejudice to the fact that death was due to injuries but even if the stance of the respondents is admitted, the petitioner is entitled for compensation as heart attack during course of employment amounts to an accident and falls within the parameters of Accidental Death. Reliance is placed on Employer/Manager Fine Gas Limited, Lahore vs. Rana Ghulam Yasin and another (2013 PLC 65), Divisional Superintendent, Pakistan Railways Sukkur and another vs. Muhammad Murad and

another (1985 PLC 973) and Divisional Superintendent, P.W.R. Multan vs. Sharifan Bibi (1976 PLC 708). Adds that consent order of this Court dated 21.02.2014 in writ petition No.19836/2013 has been violated and instead of deciding the claim of the petitioner on legal and factual plane within 30 days on the basis of post mortem report available, the petitioner has been illegally advised to approach the Court for exhumation of petitioner's father's dead body after 8 years of his death and for constitution of Medical Board to ascertain the cause of his death. Concludes that impugned order is liable to be set aside and petitioner and other legal heirs of deceased are entitled for the compensation under the law.

4. Conversely, the learned counsel for the Railway department (respondents No.1 to 4) raised a preliminary objection that being factual controversy involved, this constitutional petition is not maintainable. Further submits that petitioner is not entitled for compensation as father of the petitioner died on 25.12.2006 at Attari, India due to heart attack and not because of "accident" within the meaning of Section 3 of the Workmen's Compensation Act, 1923 ("Act"). Further submits that in compliance of this Court's order dated 21.02.2014, the post mortem report dated 26.12.2006 was referred to Medical Superintendent, Services Hospital Lahore who opined that the cause of death could not be ascertained on scrutiny of record, therefore, medical board be constituted to ascertain the cause of death after exhumation of body, hence the petitioner was informed accordingly through

impugned order which is valid and legal. The learned Deputy Attorney General on behalf of respondent No.5 adopted the arguments of the learned counsel for the respondent department.

5. I have heard the learned counsel for the parties and have also gone through the record with their able assistance.

6. This fact is not disputed between the parties that petitioner's late father Muhammad Hanif was a Train Driver with the Railway Department who died while performing his official duties as Train Driver at Attari, India on 25.12.2006. It is also an admitted position that if a workman/employee of respondent department dies by accident arising out of and in the course of his employment, his family would be entitled for compensation under the provision of the Workmen's Compensation Act, 1923. The only controversy between the parties is that on one hand the respondents are denying the claim of compensation on the ground that death was result of heart attack and not accidental, whereas on the other hand, the petitioner is claiming that death of her deceased father was a result of accident and even heart attack also amounts to an accident. In view of aforesaid respective stance of the parties, on the face of it, no factual controversy is involved in this case and the only legal question, which require determination is "whether death of petitioner's late father during employment due to heart attack will amount to an accident within the meaning of Section 3 of the Act for the purpose of compensation.

7. In the above context for ease of reference, it is expedient to reproduce Section 3 (1) of the Act as under:-

“3. Employer’s liability for compensation.---(1) If personal injury is caused to a workman by accident arising out of and in the course of his employment, his employer shall be liable to pay compensation in accordance with the provisions of this Chapter.

The perusal of Section 3(1) *ibid* shows that three expressions used therein are material **(i) personal injury (ii) accident (iii) arising out of and in the course of employment.** In order to claim compensation under Section 3 of the Act, the claimant must meet all the three material factors referred above. Applying the aforesaid three material factors to the present case, there is no doubt that death of petitioner’s deceased father amounts to a personal injury, which meets the first material factor. Now coming to the second material factor, to determine whether heart attack suffered by petitioner’s late father amounts to an accident, it is necessary to see the context in which the word “accident” is used in Section 3 of the Act. The word ‘accident’ is not defined in the Act as a precise legal term but it has been used generally with reference to various types of mishaps. The word “accident” is derived from the Latin verb *accidere*, signifying “fall upon, befall, happen, chance.” In its ordinary or popular sense, the word accident has been defined as: some sudden and unexpected event taking place without expectation; something happening by chance; something unforeseen, unexpected, unusual, extraordinary, or phenomenal, taking place not according to the usual course of things or events, out of the range of ordinary calculations; that

which exists or occurs abnormally, or an uncommon occurrence, an undesirable or unfortunate happening; any unexpected personal injury resulting from any unlooked for mishap; any unpleasant or unfortunate occurrence that causes injury, loss, suffering, or death; some untoward occurrence aside from the usual course of events, an event that takes place without one's foresight or expectation; an undesigned, sudden, and unexpected event. The word "accident" is defined in Black's Law Dictionary 8th Edition as "an unintended and unforeseen injurious occurrence, something that does not occur in the usual cause of events or that could not be reasonably anticipated. In wake of the above definitions of word "accident" the cardiac arrest suffered by petitioner's late father being improbable, sudden, unlooked for mishap and being an unexpected and untoward event must be regarded as an "accident". However, mere fact that injury was caused due to accident will not automatically entitle the employee for compensation unless the injury and accident have necessary causal connection with the work of an employee. Therefore, the third material factor, whether the heart attack has arisen out of and in the course of employment, is equally important. Applying the aforesaid third factor to the present case, there is no dispute that when petitioner's father suffered heart attack, he was performing his duties of driving Samjhota Express Train from Pakistan to India in normal course of his official-duties. The nature of duty to drive train from Lahore, Pakistan to Attari, India almost on daily basis is not an arm chair job but a tough and strenuous duty and therefore, during heart attack, while performing his official duties,

there was greater possibility that heart attack was accelerated due to the strain and stress of work. Further when petitioner's late father suffered heart attack, he was not only away from his family but also away from his Country alone in India in performance of his official duties, which could also be a significant contributory factor in cause of his death, as if at the time of heart attack, he was with his family and also in his own country, there could be reasonable expectation of timely and better medical aid which could avoid his unfortunate death due to heart attack. Further as per post mortem report dated 26.12.2006, the petitioner's deceased father also suffered injuries of multiple reddish brown abrasions during course of his employment, which further support case of the petitioner. In view of above, I have no manner of doubt that the injury and accident had a necessary causal connection with the official work of the petitioner's deceased father and the accident had arisen out of and in course of petitioner's father's employment.

8. In similar situation, the High Court of India in Bai Diva Kaluji v. Silver Cotton Mills Ltd. (AIR 1956 Bombay 424) held that where a workman suffered from heart attack after working for eight hours on a hard day in June in a Mill, that death will amount to injury by accident arising out of and in the course of his employment. In similar case Parwatibai v. Raikumar Mills, Indore (AIR 1959 Madhra Pardesh 281), it was observed as under:-

“It is well-established that the word “Accident” in section 3(1) of the Workmen’s Compensation Act, has been used in the popular and ordinary sense and means “mishap” or

“untoward event not expected or designed”. If the injury or death from the point of view of the workman, who dies or suffers the injury is unexpected or without design on his part, then the death or injury would be by accident although it was brought about by a heart attack or some other cause to be found in the condition of workman himself.”

9. In view of above discussion, the case of deceased father of petitioner amounts to accidental death and falls within the purview of section 3 of the Act for the purpose of grant of compensation and there was no occasion for advising the petitioner to approach Court for constitution of Medical Board to ascertain the cause of death of her father, after exhumation of his body after 08 years of his death. Accordingly, the impugned order dated 23.4.2014 is set aside being without lawful authority and of no legal effect. The respondents are also directed to pay compensation to the petitioner and other legal heirs of deceased Muhammad Hanif as per their entitlement under the law. As the claim of compensation to legal heirs of deceased employee is hanging fire for the last eight years, therefore, the respondents shall make the compensation expeditiously and not later than 45 days from the date of this judgment.

10. **This petition is allowed in the terms stipulated above.**

(ABID AZIZ SHEIKH)
JUDGE.

Approved for Reporting.

JUDGE.